

Rent A Motor Cycle Scheme, 1997

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Union of India - Act

Rent A Motor Cycle Scheme, 1997

UNION OF INDIA

India

Rent A Motor Cycle Scheme, 1997

Rule RENT-A-MOTOR-CYCLE-SCHEME-1997 of 1997

Published on 12 May 1997

Commenced on 12 May 1997

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Rent A Motor Cycle Scheme, 1997

Published Vide Notification S.O. 375(E), dated 12.5.1997, published in the gazette of India, Extra., Point 2, Section 3(ii), dated 12.5.1997 (w.e.f. 12.5.1997)

17.

/760

In exercise of powers conferred by section 75 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby makes the following Scheme for regulating the business of renting of motor cycles to persons desiring to drive the motor cycles for their own use and matters connected therewith, namely:

1.

Short title, commencement and application.-

(i)

This Scheme may be called Rent A Motor Cycle Scheme, 1997.

(ii)

It shall come into force on the date of its publication in the Official Gazette.

(iii)

It shall apply to motor cycles to which permit have been issued under sub-section (1) of section 74 of the Act and operating under a licence granted in terms of paragraph 6.

2.

Definitions.-

In this Scheme unless the context otherwise requires,-

(i)

"Act" means Motor Vehicles Act, 1988 (

59 of 1988

);

(ii)

"Form" means a form appended to this Scheme;

(iii)

"licence" means a licence granted or renewed under paragraph 6 to engage in the business of renting of motor cycles to persons desiring to drive the motor cycles themselves for their own use;

(iv)

"licensing authority" means the State Transport Authority constituted under sub-section (1) of section 68 of the Act;

(v)

"operator" means the holder of permit issued under sub-section (1) of section 74 of the Act in respect of not less than 5 motor cycles;

(vi)

"Scheme" means the Rent a Motor Cycle Scheme, 1997.

3.

Licensing of operator.-

No person shall engage himself in the business of renting a motor cycle under this Scheme without a licence.

4.

Application for grant or renewal of licence.-

An application for the grant or renewal of a licence under paragraph 6 shall be made in Form 1 to the licensing authority having jurisdiction in the area in which he resides or has his principal place of business and shall be accompanied by a fee of rupees one thousand.

5.

Scrutiny of application.-

A licensing authority shall, before granting or renewing a licence, take into consideration the following, namely,

(i)

That the applicant has a good moral character and has intimate knowledge of passenger transport business;

(ii)

That the applicant has necessary facilities for the housing, maintenance and repair of his vehicles, sanitary block and reception room;

(iii)

That the applicant has at least one telephone which is accessible throughout day and night;

(iv)

That the financial resources of the applicant are sufficient to provide for the continued maintenance of motor cycles and for the efficient management of the establishment;

(v)

That the applicant maintains not less than 5 motor cycles duly covered by permits issued under sub-section (1) of section 74 of the Act, with comprehensive insurance, fitness certificates, motor vehicles tax paid up to date.

6.

Grant of licence.-

The licensing authority may, on receipt of an application under paragraph 4 and after satisfying himself that the applicant has complied with the requirements of paragraph 5, grant or renew the licence in Form 2:

Provided that no application for licence shall be refused by the licensing authority unless the applicant is given an opportunity of being heard and reasons for such refusal are given in writing by the licensing authority.

7.

Duration of licence.-

A licence granted or renewed under paragraph 6 shall be valid for a period of five years from the date of grant or renewal.

8.

General conditions to be observed by the holder of the licence.-

The holder of the licence shall,

(i)

maintain a register with a separate page for each vehicle containing the particulars specified in form 3 and where a motor cycle is hired by a foreign national, shall maintain a register in Form 4;

(ii)

not shift the principal place of business mentioned in the licence without the prior approval in writing of the licensing authority which granted the licence;

(iii)

keep the premises and all the records and register maintained and the motor cycles open for inspection at all reasonable times by the licensing authority or by any person not below the rank of motor vehicle inspector as may be authorised in this behalf by the licensing authority;

(iv)

submit from time to time, to the licensing authority such information and return as may be called for by it;

(v)

display at prominent place in its main office and its branch office, the licence issued in original and certified copies thereof, attested by the licensing authority;

(vi)

maintain in their main office and branch offices at a conspicuous place a "Complaint Book" in the Form 5 with serially numbered pages in triplicate. The licensee shall despatch the duplicate copy of complaint, if any, to the licensing authority by registered post expeditiously and in any case not later than 3 days;

(vii)

maintain a suggestion box in the main office and branch offices and forward their suggestions received with their comments, if any, to the licensing authority once a month.

9.

Collection of hire charges.-

The holder of a licence shall collect the hire charges from a foreign national or non-resident Indian only in foreign exchange and shall hold for the purpose a licence to transact in foreign exchange.

10.

Duties and responsibilities of the hirer of motor cycles.-

(1)

It shall be the duty of every hirer to keep the holder of the licence, informed of his movements from time to time.

(2)

If an individual or company has hired the vehicle, as a leader of the tourist party, it shall be the duty of such leader of the party to keep the holder of the licence informed of the movements of each vehicle, from time to time.

11.

Power of licensing authority to suspend or cancel the licence.-

(1)

The licensing authority shall, on being satisfied after giving the holder of the licence, an opportunity of being heard, that he has

(i)

failed to comply with the provisions of paragraph 8 or 9; or

(ii)
failed to maintain the motor cycle in compliance with the provisions of the Act and Rules; or

(iii)
any one of his employees has misbehaved with the customers; or

(iv)
any complaint against the licensee by any hirer has been proved beyond reasonable doubt, suspend the licence for specified period or cancel the licence.

(2)
Where the licence is liable to be cancelled or suspended and the licensing authority is of opinion that having regard to the circumstances of the case, it would not be necessary or expedient to cancel or suspend the licence; if the holder of the licence agrees to pay the fine that he may be imposed by the licensing authority, then notwithstanding anything contained in clause (1) the licensing authority may, instead of cancelling or suspending the licence, as the case may be, recover from the holder of the licence, the said fine.

(3)
For the purpose of recovery of the sum of money agreed upon, the State Government may, by notification in the Official Gazette, specify the amount recoverable for each day of suspension of the licence and specify the time within which the sum of money agreed upon is payable, failing which the orders passed under clause (1) shall be implemented.

(4)
When the licence is suspended or cancelled under clause (1), the holder of the licence shall surrender the licence to the licensing authority.

12.
[Appeals.-

[Paragraph 12 substituted by S.O. 257(E), dated 26.3.1998 (w.e.f. 26.3.1998).]
Any person aggrieved by any order of the licensing authority under paragraph 6 or paragraph 11, may within thirty days of the receipt of the order, appeal to the State Transport Appellate Tribunal.]

13.
Procedure for appeal.-

(1)
An appeal under rule 12 shall be preferred in duplicate in the form of a memorandum setting forth the ground of objection, to the order of the licensing authority and shall be accompanied by a fee as may be specified by the State Government, by notification in the Official Gazette.

(2)
[The State Transport Appellate Tribunal may after giving an opportunity to the parties to be heard and after such enquiry as it may deem necessary, pass appropriate orders.

(3)
The State Transport Appellate Tribunal shall dispose of an appeal under paragraph 12 within a period of ninety days from the date on which such appeal is filed.]

[Sub-paragraph (2) substituted by S.O. 257(E), dated 26.3.1998 (w.e.f. 26.3.1998).]
14.

Voluntary surrender of the licence.-
The holder of a licence may at any time surrender the licence issued to him by the licensing authority which granted the licence and on such surrender the licensing authority shall cancel the licence. The holder of the licence before surrendering the licence shall clear the dues referred to in clause (2) of paragraph 11.

FORM 1
[See paragraph 4]
APPLICATION FOR GRANT OR RENEWAL OF LICENCES FOR
RENTING MOTOR CYCLES

To
The State Transport Authority
.....State /UT

I, the undersigned, hereby apply for a licence for renting motor cycles in the State of

1. Full Name

Son/Wife/Daughter of

2. (a) Full Address

(b)

Telephone No

3. Age

4. (a) Experience in management of transport business

(b)

Number of motor cycles held with valid permits

5. Particulars of licence, if already held

6. (a) Place where the applicant has his main office with detailed address

(b)

Place where the applicant has his branch office with detailed address

(c)

The number of motor cycles to be stationed in each branch office

7. Nature and extent of financial resources of the applicant

8. Particulars of motor cycles owned alongwith details of registration mark

9. Full description of the place where the business is to be carried on

(a)

Location, open area, covered area

(b)

Any other particulars

10.1

am conversant with the conditions for carrying the business for renting of motor cycles.

11.1

hereby declare that to the best of my knowledge and belief the particulars given above are correct and true.

The prescribed fee of rupees one thousand is paid*

Place:

Date:

Signature of applicant

* (Here indicate mode of payment)

FORM 2

[See paragraph 61

LICENCE OF RENTING MOTOR CYCLES

1. . Name of the Operator

2. Son /Wife/ Daughter of

3. Full Address of the place of business

4. Registration mark of motor cycles authorised for renting

Main Office

Branch Office

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.
11.
12.

is licenced to rent motor cycle.

This licence is issued on and is valid up to

State Transport Authority

.....State /UT

RENEWAL

Renewed fromto.....

State Transport Authority

.....State /UT

FORM 3

[See paragraph 8(i)]

REGISTER TO BE MAINTAINED BY RENT A MOTOR CYCLE LICENSEE

Sl.No

Name of hirer

Full Address

Telephone No., if

Motor driving licence No.

1
2
3
4
5

Issue by (Authority)

Class of Vehicle

Date of issue

Date of expiry

Date and time of hire

6
7
8
9
10

Date and time of returning vehicle

Motor vehicle used for total kilometers

Signature of hirer

Remarks

11
12
13
14

||||||

FORM 4

[See paragraph 8(i)]

REGISTER TO BE MAINTAINED BY RENT A MOTOR CYCLE LICENSEE IN CASE
WHERE THE MOTOR CYCLE IS HIRED TO A FOREIGNER

Sl.No.

Name of hirer

Full address

Telephone No., if any

Motor driving licence No.

Issued by (Authority)

1

2

3

4

5

6

Class of vehicle

Date of issue

Date of expiry

Passport No.

Issued by the authority and State/Nation

Date of issue of passport

7

8

9

10

11

12

Date of expiry

Date of birth as per passport

Driving permit No., if any

Date of issue of driving permit

Class of vehicle authorized to drive

Date and time of hire

13

14

15

16

17

18

Date and time of returning vehicle

Motor vehicle used for total kms.

Signature of hirer

Remarks

19

20

21

22

|||||||

FORM 5

[See paragraph 8(vi)]

COMPLAINT BOOK

(With pages serially numbered in triplicate)

1. Name of complainant

2. Full address

3. The name and address of the holder of the licence for rent a motor cycle

4. Licence number, and the authority which issued the licence

5. The date and time of hiring the vehicle and date of time when the vehicle was returned
.....

6. Vehicle Number
Complaint in brief
Date:
Place:
Signature
1. The licensing authority by registered post(Duplicate copy)
2. The complainant(Triplicate copy)
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Translation